

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 18
JUDICIAL OFFICER: DANIELLE K DOUGLAS
HEARING DATE: 12/12/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued.

Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D18. Zoom is approved for all hearings except Issue Conferences and Trials. **Dept. 18's telephone number is: (925) 608-1118.**

NOTE: In order to minimize the risk of miscommunication, Dept. 18 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 18's email address is: dept18@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 18 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C23-01843
CASE NAME: ALI KHAN VS. X-THERMA INC.
HEARING ON SUMMARY MOTION ADJUDICATION
FILED BY: KHAN, ALI ZIA
TENTATIVE RULING:

Before the Court is Plaintiff Ali Khan ("Plaintiff" or "Khan")'s motion for summary adjudication. The motion relates to Plaintiff's Complaint for Breach of Contract as well as Defendant X-Therma, Inc. ("Defendant" or "X-Therma")'s Cross-Complaint for (1) constructive eviction, (2) breach of lease, (3) breach of implied covenant of good faith & fair dealing, (4) declaratory relief, (5) private nuisance, (6)

premises liability, (7) unfair business practices in violation of Bus. & Prof. Code § 17200 et seq., (8) enforcement of unilateral rescission of the lease, (9) fraud (active concealment), and (10) negligent misrepresentation.

As a threshold issue, the motion purports to move “for an order of summary adjudication for all the causes of action stated in the Defendant’s cross-complaint and all the affirmative defenses stated by Defendant to the cause of action for breach of contract stated in Plaintiff’s complaint” as well as “an order of summary adjudication entered in favor of the Plaintiff’s cause of action for Defendant’s breach of contract[.]” (Notice at 1:23-28.)

“A party may move for summary judgment *in an action* or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding,” or “a party may move for summary adjudication as to one or more causes of action *within an action*.” (Code Civ. Proc., § 437c, subds. (a)(1) & (f)(1), emphasis added.) These references to “an action” in the summary judgment statute are singular references. The word “action” is defined as “an ordinary proceeding in a court of justice by which one party prosecutes another [...]” (Code Civ. Proc., § 22, emphasis added.)

The Complaint and the Cross-Complaint are legally two separate actions. “Where there are both a complaint and a cross-complaint there are actually two separate actions pending and the issues joined on the cross-complaint are completely severable from the issues under the original complaint and answer. [Citations.]’ [Citation omitted.]’ “Where a cross-complaint is filed there are two simultaneous actions pending between the parties wherein each is at the same time both a plaintiff and a defendant.” [Citation.]’ [Citations omitted.]” (*Westamerica Bank v. MBG Industries, Inc.* (2007) 158 Cal.App.4th 109, 134.)

No authority, of which this Court is aware, permits a party to move for summary adjudication of causes of action in a complaint as well as summary adjudication of claims made in a cross-complaint in a single motion under Code of Civil Procedure section 437c. Nevertheless, Defendant and Cross-Complainant did not file an opposition or objection, and so the Court will address the motion for summary adjudication on the Complaint and the Cross-Complaint on the merits.

For the following reasons, the motion is **granted**.

Request for Judicial Notice

Plaintiff’s unopposed request for judicial notice is **granted**. (Evid. Code § 452(d).)

Legal Standard

A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at 851.)

A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(1).)

However, “[i]f the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.” (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

The Court notes that California law does not require a moving Plaintiff to negate a Defendant’s affirmative defenses to satisfy its initial burden. (See *Aguilar, supra*, 25 Cal.4th at p. 853 [‘summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action.... All that the plaintiff need do is to “prove[] each element of the cause of action” ’].)

Analysis

This case arises out of a commercial lease agreement between Plaintiff, owner of an industrial real estate property in Richmond, and Defendant, a California corporation.

Plaintiff’s Complaint for Breach of Contract

“[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

The undisputed facts show that (1) Plaintiff and Defendant executed a lease on February 18, 2023 (UMF 2), (2) pursuant to paragraph 2.2 of the Lease Agreement, Plaintiff warranted the Premises to be free from mold or fungi for a period of thirty days after commencement of the lease and Defendant did not report mold on the premises until fifteen months later (UMF 6), (3) on June 15, 2023.

Defendant stopped paying rent to Plaintiff as required by the Lease Agreement (UMF 9), and it will require \$288,000 for Plaintiff to remediate the property due to Defendant’s modifications.

Defendant has not filed an opposition or otherwise responded to the motion. Thus, Defendant has waived any arguments regarding this motion. (See *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also *Wright v. Fireman’s Fund Ins. Companies* (1992) 11 Cal.App.4th 998, 1011 [“it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion”].)

Therefore, the court will **grant** the motion as Plaintiff’s cause of action for breach of contract.

Defendant’s Cross-Complaint

As to each claim as framed by the cross-complaint, the cross-defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519–1520.) Once the cross-defendant has met that burden, the burden shifts to the cross-complainant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th

151, 163.)

(1) constructive eviction

The necessary elements for constructive eviction are: (1) a landlord's acts/omissions or disturbance/interference with her tenants' possession of leased premises; and (2) that said landlord's conduct caused either a substantial portion of the premises to be unfit for the purposes for which it was leased or the tenants to be deprived of the beneficial enjoyment or use of the premises for a substantial time. (*Groh v. Kover's Bull Pen, Inc.* (1963) 221 Cal.App.2d 611, 614.)

The Cross-Complaint alleges that "[t]he Property was and remains in a hazardous condition due to the presence of excessive levels of black mold, which interfered with X-Therma and its employees from safely occupying and conducting its business as a regulated FDA manufacturer at the Premises for operation of a laboratory." (XC at ¶ 28.)

The undisputed facts show that Defendant did not report the presence of mold until 15 months after the Start Date of the lease. (UMF 2, 8.) Under paragraph 7.1 of the lease, the Defendant became responsible for the remediation of mold or fungi on the premises thirty days after commencement of the lease. (UMF 7.) As a consequence, the presence of black mold cannot support Defendant's cause of action for constructive eviction.

Plaintiff is entitled to summary adjudication of Defendant's constructive eviction claim.

(2) breach of lease

Cross-Complainant's breach of lease claim is based on the same contract as is Plaintiff's breach of contract claim. The Cross-Complaint alleges that "Khan breached the Lease Agreement, by failing to deliver the Premises in a reasonably safe condition, free of hazardous levels of toxic black mold and fungi and other defective conditions." (XC at ¶ 33.)

For the same reasons as discussed supra, Plaintiff is entitled to summary adjudication of Defendant's breach of lease claim.

(3) breach of implied covenant of good faith & fair dealing

To prevail on a claim for breach of the implied covenant of good faith and fair dealing, the Cross-Complainant must first establish "the existence of a contractual relationship between the parties, since the covenant is an implied term in the contract." (*Smith v. City and County of San Francisco* (1990) 225 Cal.App.3d 38, 49.) Secondly, benefits due under the contract must have been withheld, and "the reason for withholding benefits must have been unreasonable or without proper cause" (*Love v. Fire Ins. Exchange* (1990) 221 Cal.App.3d 1136, 1151.) Under traditional contract principles, the implied covenant of good faith is read into contracts "in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract's purpose." (*Carma Developers (Cal.), Inc. v. Marathon Development California, Inc.* (1992) 2 Cal.4th 342, 373.)

The Cross-Complaint alleges that "Khan breached this covenant by engaging in acts complained of in this Cross-Complaint and failing and continuing to fail to remediate the issues, including but not limited to the black mold." (XC at ¶ 39.) However, Plaintiff has adduced evidence that he had no reason to believe that black mold ever existed in or on the Premises before May 12, 2023 (UMF 4) and that pursuant to the lease, Defendant became solely responsible for the remediation of mold or fungi on the premises thirty days after commencement of the lease. (UMF 7.)

Plaintiff is entitled to summary adjudication of Defendant's breach of implied covenant claim.

(4) declaratory relief

California Courts have recognized that "[t]he existence of an 'actual controversy relating to the legal rights and duties of the respective parties,' suffices to maintain an action for declaratory relief." (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 605.) "Any person interested under a written instrument,... or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract." (*Id.* [quoting Code Civ. Proc, § 1060].)

As discussed *infra*, the Court grants Plaintiff's motion with respect to all of the causes of action of the Cross-Complaint. Thus, an actual controversy sufficient to sustain a declaratory judgment cause of action does not exist.

Plaintiff is entitled to summary adjudication of Defendant's declaratory relief claim.

(5) private nuisance

Section 731 of the Code of Civil Procedure governs who may bring an action for nuisance. It provides: "An action may be brought by any person whose property is injuriously affected, or whose personal enjoyment is lessened by a nuisance, as defined in Section 3479 of the Civil Code, and by the judgment in that action the nuisance may be enjoined or abated as well as damages recovered therefor." (Code Civ. Proc., § 731.)

Here, Defendant's private nuisance claim is premised on the presence of black mold at the property. However, as the undisputed material facts establish, Defendant did not report the presence of mold for 15 months after the start date of the lease and after Defendant performed extensive modifications to the property, and that under the lease Defendant was solely responsible for remediating the presence of black mold. (UMF 3, 5, 6, and 9.)

As a consequence, Plaintiff is entitled to summary adjudication of Defendant's private nuisance claim.

(6) premises liability

For the same reasons as discussed with respect to Defendant's private nuisance claim, Plaintiff is entitled to summary adjudication of Defendant's premises liability claim, which is also premised on the presence of black mold.

(7) unfair business practices in violation of Bus. & Prof. Code § 17200 et seq.

Plaintiff moves for summary adjudication of Defendant's 17200 claim on the grounds that Defendant does not spell out the elements of the business tort for the "borrowed" action in his UCL claim.

"[S]ection 17200 'borrows' violations of other laws and treats them as unlawful practices" that the unfair competition law makes independently actionable. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.)

As pled, Defendant's Cross-Complaint is unclear as to the predicate violation upon which it relies for its 17200 claim. It alleges only "[t]he various breaches of duty committed by Khan as described herein constitute unlawful, unfair, and/or fraudulent business practices in violation of the UCL." (XC at ¶ 63.) Even assuming *arguendo* that Defendant's causes of action for breach of contract or fraud are

intended to serve as a predicate for the 17200 claim, Plaintiff has established that he is entitled to summary adjudication on those claims, as discussed herein.

Plaintiff is entitled to summary adjudication of Defendant's 17200 claim.

(8) enforcement of unilateral rescission of the lease

Plaintiff moves for summary adjudication of Defendant's cause of action for rescission on the same grounds as breach of lease. Because the Court has already determined that Plaintiff performed under the contract, Defendant cannot establish a cause of action for rescission. Plaintiff is entitled to summary adjudication on Defendant's cause of action for rescission.

(9) fraud (active concealment)

Plaintiff moves for summary adjudication on Defendant's cause of action for fraud on the grounds that it lacks the requisite specificity.

The elements of a fraudulent concealment cause of action are: "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4 858, 868.)

Defendant's Cross-Complaint alleges that (1) "Khan concealed the fact that the Property had black mold in it" (XC at ¶ 71); (2) that "[t]he existence of the black mold at the Property was known by Kahn because he was obligated by a commercial landowner to inspect the Property before the Lease was executed to make the premises reasonably safe from dangerous conditions" (XC at ¶ 72); (3, 4) that "at the time X-Therma executed the Lease, Khan concealed this information with the intent that X-Therma rely ignorant of the true facts" (XC at ¶ 74); and (5) that "X-Therma has been damaged in an amount exceeding \$700,000, which amount will be proven at trial." (XC at ¶ 75.)

These allegations are insufficient to state a cause of action for concealment; both Plaintiff's intent and Defendant's reliance are inadequately alleged. Plaintiff is entitled to summary adjudication on Defendant's claim for fraud (active concealment).

(10) negligent misrepresentation

Plaintiff also moves for summary adjudication on Defendant's claim for negligent misrepresentation on the grounds that it lacks the requisite specificity.

The elements of negligent misrepresentation are "(1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another's reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage." (*Apollo Capital Fund LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243.) While there is some conflict in the case law discussing the precise degree of particularity required in the pleading of a claim for negligent misrepresentation, there is a consensus that the causal elements, particularly the allegations of reliance, must be specifically pleaded. (*E.g., Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184; *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519.)

Defendant's Cross-Complaint alleges that (1) Khan represented to X-Therma that the Property contained no black mold issues (XC at ¶ 78); (2) those representations were false, Khan should have

known they were false, and had no reasonable grounds for believing them to be true when made (XC at ¶ 80); (3) that Khan intended that X-Therma rely on his representations (XC at ¶ 81); (4) that Khan's misrepresentations were a substantial factor in X-Therma's decision to enter the Lease with Khan (XC at ¶ 83); and (5) that as a direct and proximate result of the conduct and actions committed by Khan, X-Therma has been damaged in an amount exceeding \$700,000 (XC at ¶ 84).

The Cross-Complaint is bereft of allegations as to how Plaintiff knew or should have known of a mold problem on the Premises and how he concealed this from Defendant. The allegations of the Cross-Complaint are cursory at best. Plaintiff is entitled to summary adjudication on Defendant's negligent misrepresentation claim.

2. 9:00 AM CASE NUMBER: C23-03214

CASE NAME: ROBERT BRADFORD VS. KEITH STONE

***HEARING ON MOTION IN RE: LIMITED OPPOSITION TO DISCOVERY ORDER NO. 3**

FILED BY: K. B. STONE DIAMOND CORPORATION

TENTATIVE RULING:

Granted. Plaintiffs are not permitted to seek discovery into unrelated business entities and personal financial matters of the Stones, other than the flow of money between Defendants K.B. Stone Diamond Corporation and Happy Valley Estates, LLC to the Stones. The order is made without prejudice if discovery reveals cash flowing between one of the relevant entities and an unrelated business entity and/or personal finances.

3. 9:00 AM CASE NUMBER: C24-03509

CASE NAME: AJ JACKSON VS. ANTIOCH UNIFIED SCHOOL DISTRICT

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: ANTIOCH UNIFIED SCHOOL DISTRICT

TENTATIVE RULING:

Defendant Antioch Unified School District's Demurrer to Plaintiff AJ Jackson's Complaint is **sustained with leave to amend**. Defendant shall prepare and submit a proposed order and serve notice of entry of the order. Plaintiff shall have 30 days from service of notice of entry of order in which to file and serve an amended complaint.

Background

Plaintiff AJ Jackson, a minor, alleges that on January 1, 2024, while attending Carmen Dragon Elementary, he was physically assaulted by other students. (Complaint, ¶ 3.) Plaintiff alleges he was under the custody, control, and care of District employees at the time and that those employees "failed [to] take appropriate action" in supervising and protecting him. (*Id.* ¶ 13.) Plaintiff seeks to hold the District vicariously liable the negligence of its employees pursuant to Government Code section 815.2. (*Id.* ¶¶ 14-18.)

Plaintiff alleges that a government claim "was served on Antioch Unified School District pursuant to Government Code section 911.2 and has not been rejected." (*Id.* ¶¶ 8-9.)

On August 13, 2025, Defendant filed the instant demurrer to complaint in which it argues that Plaintiff failed to comply with the claim presentation requirements of the Government Claims Act (GCA). Plaintiff opposes.

Demurrer Standard

In reviewing the sufficiency of a complaint against a demurrer for failure to state facts sufficient to state a cause of action, the Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) A demurrer tests the pleadings alone and not extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.)

Leave to amend should be granted when “there is a reasonable possibility that the defect can be cured by amendment.” (*Centinela Freeman Emergency Medical Associates v. Health Net of California* (2016) 1 Cal.5th 994, 1010.)

Analysis

With certain exceptions not applicable here, “no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented . . . until a written claim therefor has been presented to the public entity.” (Govt. Code §§ 905, 911.2, 945.4.)

Govt. Code § 915 provides:

(a) **A claim**, any amendment thereto, or an application to the public entity for leave to present a late claim **shall be presented to a local public entity by any of the following means:**

(1) Delivering it to the clerk, secretary or auditor thereof.

(2) **Mailing it to the clerk, secretary, auditor, or to the governing body at its principal office.**

(3) If expressly authorized by an ordinance or resolution of the public entity, submitting it electronically to the public entity in the manner specified in the ordinance or resolution. . . .

(e) **a claim**, amendment, or application **shall be deemed to have been presented in compliance with this section** even though it is not delivered or mailed as provided in this section **if, within the time prescribed for presentation thereof, any of the following apply:**

(1) **It is actually received by the clerk, secretary, auditor, or board of the local public entity.**

. . . .

(Govt. Code, § 915, emphasis added.)

A complaint against a public entity must allege compliance with the GCA or circumstances excusing compliance. (*State v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1245.)

Defendant demurs to the complaint on the ground that Plaintiff failed to comply with the Government Tort Claims Act. Specifically, Defendant argues Plaintiff did not comply with Government Code section 915(a)(2) because his claim was delivered to Defendant’s Business Services/Risk Management Department rather than to the District’s “clerk, secretary, auditor, or governing body,” as the statute requires.

To establish noncompliance, Defendant requests judicial notice of: (1) a “Government Tort Claim for Damage or Injury” submitted on behalf of AJ Jackson, bearing an AUSD Business Services “Received”

stamp dated July 1, 2024; (2) the accompanying certified-mail envelope addressed to “Antioch Unified School District, Attn: Risk Management,” also received July 1, 2024; and (3) a return envelope addressed to plaintiff’s counsel requesting a conformed copy. (Alterman Decl., Ex. A.)

Defendant’s request for judicial notice is granted as to Exhibit 1. (Evid. Code, § 452, subd. (d).) A governmental entity may request judicial notice that its records do not show compliance where the plaintiff alleges compliance, but the records do not reflect it. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376.)

While the Court may take judicial notice of the existence and contents of Exhibit 1, including that the claim was addressed to and received by Risk Management, judicial notice does not establish that the claim was never forwarded to, or actually received by, a statutory recipient under section 915(a)(2). Nor does the Court take judicial notice of the truth of Ms. Alterman’s statement that the claim “has not been forwarded to or actually received by the clerk, secretary, auditor, or the District’s governing body.” Judicial notice does not extend to such factual assertions.

Plaintiff admits he did not address his claim to any of the statutorily authorized recipients. He argues, however, that he complied, or substantially complied, with the GCA because the claim was mailed to 510 G Street, Antioch, CA 94509, the District’s principal office and the location of the Board. (Plf.’s RJN, Exs. A–C.)

Defendant responds that substantial compliance fails as a matter of law because the claim was not directed to a statutorily designated recipient, citing *DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983.

In *DiCampli-Mintz*, the California Supreme Court addressed the scope of California Government Code § 915, which “establishes the manner of delivery of a claim against the government.” (*Id.* at 986.) Section 915(a) “requires that a claim be presented to a local public entity by ‘[d]elivering it to the clerk, secretary or auditor,’ or by mailing it to one of these officials ‘or to the governing body.’” (*Id.*) Section 915(e), however, provides that “a misdirected claim ‘shall be deemed to have been presented in compliance’ with section 915 if ‘[i]t is actually received by the clerk, auditor or board of the local public entity.’” (*Id.*)

The plaintiff in *DiCampli-Mintz* was injured during a surgery performed on her at a hospital owned and operated by Santa Clara County. She retained an attorney who sent a letter to the hospital’s risk management department and the doctors who performed the surgery stating that she intended to file suit for damages. The attorney did not include in the letter a request for it to be forwarded to any of the statutorily designated recipients denoted in section 915. (See *id.* at 987.) It was also “undisputed that the letter was never personally served or presented, nor was it mailed to the county clerk or the clerk of the board.” (*Id.*)

The attorney’s letter was received by the County’s risk management department. Subsequently, an employee of the County’s risk management department called the plaintiff’s counsel:

According to plaintiff’s counsel, [the employee] acknowledged receipt of the letter; orally opined that service on [the hospital] required a tort claim which was late; questioned whether a tort claim was required as to [the doctors] and indicated that he would look into that; stated that plaintiff had an interesting case; mentioned a physical condition that put plaintiff at risk; and provided the name of the attorney handling the County’s defense. [The employee] did not mention that the letter failed to satisfy section 915’s delivery requirements. Plaintiff never received written notice that her claim was untimely or presented to the wrong party.

(*Id.* at 988.)

The County argued the plaintiff had failed to comply with the GCA because her claim was never presented to or received by a statutorily designated recipient. In response, the plaintiff argued that she had substantially complied with the GCA through her attorney's letter, which was delivered to and received by the risk management department as "the county department most directly involved with the processing and defense of tort claims against the County." (*Id.* at 989.)

On appeal, the Supreme Court rejected the plaintiff's substantial compliance argument, noting that section 915 by its "plain language" required either presentation to one of the statute's designated recipients or actual receipt of notice by a proper recipient. (*Id.* at 992.) It stated that section 915(a)(1) reflects the Legislature's intent to precisely identify those who may receive claims on behalf of a local public entity. Section 915(e)(1) reflects the Legislature's intent that a misdirected claim will satisfy the presentation requirement if the claim is "actually received" by a statutorily designated recipient. Thus, compliance with section 915(e)(1) requires actual receipt of the misdirected claim by one of the designated recipients. If an appropriate public employee or board never receives the claim, an undelivered or misdirected claim fails to comply with the statute. (*Id.* at 992-93.)

The Court also rejected the lower court's holding that section 915 could be satisfied if a claimant were to serve a party who may have had a duty to notify one of the statutorily designated recipients. "[B]y focusing on the duty of a public employee in receipt of a claim to forward the claim to the proper agency, [the appellate court] inappropriately shifts responsibility for filing a claim with the proper official or body from the claimant to the public entity." (*Id.* at 996.) The Court stated, if the lower court's ruling were followed, much uncertainty would be introduced "about how and where claims must be delivered" which would be "contrary to the [GCA's] goal of eliminating uncertainty in the claims-presentation requirements." (*Id.* at 997.)

Plaintiff argues the facts of this case are distinguishable because the letter in *DiCampli-Mintz* was delivered to a hospital sub-department, whereas his claim was mailed to the District's principal office where its Board sits, such that none of the concerns noted in *DiCampli-Mintz* are implicated. Plaintiff argues the only defect here is Defendant's asserted "preference" that the envelope containing a claim be addressed to a specific internal recipient rather than "Risk Management." Plaintiff further argues that Defendant waived any defect under Government Code section 910.8 by failing to provide notice of any deficiency.

There is no dispute that Plaintiff's claim was not sent to the District's clerk, secretary, auditor, or governing board, and the complaint does not allege actual receipt by any such official. However, at this stage, the Court need not determine whether *DiCampli-Mintz* ultimately bars Plaintiff's claim for negligence, or whether Defendant waived any defect. "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) Here, Plaintiff claims he can plead "additional facts regarding precise address, actual receipt *and routing*..." (Opp. 11:12-13, emphasis added.) Under these circumstances, the Court finds it appropriate to grant leave for Plaintiff to allege facts demonstrating or excusing compliance with the GCA's claim-presentation requirements or otherwise supporting a defense to Defendant's assertion of noncompliance.

Accordingly, Defendant's demurrer is sustained, and Plaintiff is granted leave to amend. Defendant shall prepare and submit a proposed order and serve notice of entry of the order. Plaintiff shall have 30 days from service of the notice of entry of the order to file and serve an amended complaint.

4. 9:00 AM CASE NUMBER: C25-00530
CASE NAME: SEAN KARIMIAN VS. GEMDALE 85 CLEAVELAND ROAD, LLC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: GEMDALE 85 CLEAVELAND ROAD, LLC
TENTATIVE RULING:

The demurrer, filed by defendant Gemdale 85 Cleaveland Road, LLC, is **sustained without leave to amend as to the fourth cause of action and otherwise overruled**, as discussed below. Defendant shall file its answer on or before December 22, 2025.

I. Factual Background

The complaint here involves defendant, Gemdale's construction project adjacent to plaintiff's property. Plaintiff contends defendant unlawfully removed a fence on his property and installed a temporary fence. (Complaint, ¶7.) In doing so, plaintiff contends that defendant damaged a 23-year-old tree on plaintiff's property. (*Ibid.*) Plaintiff further contends that defendant placed its fence well into the boundary of plaintiff's property, constituting a trespass. (*Id.* at ¶18.) Defendant's activity caused destabilization and collapse of the side fences on plaintiff's property. (*Ibid.*) Plaintiff earns income by leasing the property to tenants. (*Id.* at ¶19.) The unauthorized trespassing and damage have rendered plaintiff's property unsafe and uninhabitable for tenants, resulting in financial losses due to inability to rent the property. (*Ibid.*)

Plaintiff filed the complaint on February 25, 2025, alleging seven causes of action with the following titles: (1) Negligence, (2) Trespass, (3) Trespass to Timber, (4) Negligent Interference with Contractual Relations, (5) Intentional Interference with Contractual Relations, (6) Negligent Interference with Prospective Economic Relations, and (7) Intentional Interference with Prospective Economic Relations.

After meeting and conferring with plaintiff, as required by Code of Civil Procedure, section 430.41, defendant filed this demurrer pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), targeting the fourth through seventh causes of action. Plaintiff opposes the demurrer.

II. Evidentiary Matters

Defendant's request for judicial notice of the complaint is **granted**.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

IV. Discussion

A. Uncertainty (All Causes of Action)

Defendant demurs on the basis that causes of action 4-7 are uncertain. The argument offered is four sentences long, conclusory, and offers no analysis. The Court disagrees that the complaint is so

unintelligible that the defendant cannot know what is being pleaded. Uncertainty is a disfavored ground for sustaining a demurrer, and a demurrer for uncertainty will be sustained only when the pleading is such that the responding party cannot even discern what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.) The complaint here meets that low bar. The Court expects that any lingering issues can be illuminated through discovery. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616 ["demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures"].)

The demurrer based on uncertainty is overruled with respect to all challenged causes of action.

B. Sufficiency of facts

1) Fourth Cause of Action (Negligent Interference with Contractual Relations)

Defendant demurs to the fourth cause of action on the basis that there is no recognized tort in California for the negligence interference with contractual relations. Defendant provides authority on point. (*Davis v. Nadrich* (2009) 174 Cal.App.4th 1, 9.)

Plaintiff's opposition argues the point together with its discussion of the sixth cause of action for negligent interference with prospective economic relations. Aside from citing *Nelson v. Tucker Ellis LLP* (2020) 48 Cal.App.5th 827, plaintiff does not directly address the argument regarding the non-recognition of this tort. In *Nelson*, the cause of action was alleged in combination with negligent interference with prospective economic advantage, which is separately alleged in our case. (See *id.* at 844, fn. 5.)

The demurrer to the fourth cause of action is sustained. Because plaintiff offers no facts that would permit pleading this cause of action separately from the sixth, leave to amend is denied.

2) Fifth Cause of Action (Intentional Interference with Contractual Relations)

Defendant demurs to the fifth cause of action on the basis that plaintiff fails to state sufficient facts. "The elements which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (*Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1126, internal citations omitted.) Specifically, defendant argues plaintiff does not plead facts showing the existence of an enforceable contract, or defendant's knowledge of such a contract.

Plaintiff states in paragraphs 33-34 that defendant knew of his relationship with his tenants, but defendant contends the statement is conclusory. A complaint need only state the facts constituting the cause of action in ordinary and concise language. (Code Civ. Proc., § 425.10 (a)(1).) With respect to matters of which the defendant has superior or co-extensive knowledge, such as allegations regarding knowledge or intent, less particularity is required so long as the pleading gives notice of the issues sufficient to enable preparation of a defense. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550)

The demurrer is overruled as to the fifth cause of action.

3) Sixth Cause of Action (Negligent Interference with Prospective Economic Relations)

Defendant demurs to the sixth cause of action on the basis that plaintiff fails to state sufficient

facts. “The elements of negligent interference with prospective economic advantage are (1) the existence of an economic relationship between the plaintiff and a third party containing the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) the defendant’s knowledge (actual or construed) that the relationship would be disrupted if the defendant failed to act with reasonable care; (4) the defendant’s failure to act with reasonable care; (5) actual disruption of the relationship; (6) and economic harm proximately caused by the defendant’s negligence.” (*Redfearn v. Trader Joe’s Co.* (2018) 20 Cal.App.5th 989, 1005.) As with the fifth cause of action, defendant argues plaintiff does not plead facts showing defendant’s knowledge of any economic relationship.

Plaintiff states in paragraphs 39-40 that defendant knew of his relationships with tenants. As noted above, defendant contends the statement is conclusory. A complaint need only state the facts constituting the cause of action in ordinary and concise language. (Code Civ. Proc., § 425.10 (a)(1).) With respect to matters of which the defendant has superior or co-extensive knowledge, such as allegations regarding knowledge or intent, less particularity is required so long as the pleading gives notice of the issues sufficient to enable preparation of a defense. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550)

The demurrer is overruled as to the sixth cause of action.

4) Seventh Cause of Action (Intentional Interference with Prospective Economic Relations)

Defendant contends that the seventh cause of action fails for the same reasons discussed above. Specifically, that plaintiff fails to plead facts to support that defendant knew of any economic relationship that would benefit plaintiff. For the same reasons as discussed above, the argument is rejected and the demurrer to the seventh cause of action is overruled.

5. 9:00 AM CASE NUMBER: C25-00878
CASE NAME: ANGELA YEUNG VS. JP MORGAN CHASE BANK NATIONAL ASSOCIATION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: JP MORGAN CHASE BANK NATIONAL ASSOCIATION
TENTATIVE RULING:

Introduction

Before the Court is Defendants JPMorgan Chase Bank, N.A. and Stacey Pearson’s Demurrers and Motions to Strike. The Demurrers and Motions to Strike relate to Plaintiff’s FAC for ten causes of action for employment-related claims.

For the following reasons, the **Defendant Chase’s Demurrer is sustained in its entirety with leave to amend. The Demurrer for causes of action two, four, eight, nine, and ten are sustained without leave to amend as to Defendant Pearson. The Demurrer for causes one, three, five, six, and seven are sustained with leave to amend as to Defendant Pearson.**

Meet and Confer Requirement

Defendants satisfied their meet and confer requirement regarding their Demurrers and Motions to Strike in detailing their meet and confer efforts with Plaintiff’s counsel in the Declarations of Ashley

Farrell Pickett and Oscar E. Peralta. Defendants' Counsel details their various meet and confer efforts with Plaintiff's counsel via phone and email from June to August 2025. After a series of phone calls and emails the Parties were unable to reach an agreement. (Pickett Decl. at ¶¶ 2-6; Peralta Decl. at ¶¶ 2-3.)

The Court is a bit underwhelmed to hear that the Parties were unable to reach a stipulation to amend when a Party offers amendment in response to another Party's concern. (Augustt Decl. at ¶¶ 5-9.) This exchange and expected cooperation is the breath that gives life to the meet and confer process. The Court expects that the Parties will work cooperatively together to move this case along expeditiously going forward.

Statement of Facts

Plaintiff Angela Mei Yi Yeung alleges she was a long-term employee of JPMorgan Chase Bank with a strong performance record based on her long tenure. It was not until Defendant Stacey Pearson became Plaintiff's supervisor that the issues commenced. The FAC alleges that Pearson engaged in discriminatory and harassing conduct based on Plaintiff's Taiwanese and Chinese heritage, including reprimanding her for speaking Cantonese, making derogatory cultural remarks, and creating a hostile environment. (FAC ¶¶ 15, 18–24.) Pearson also engaged in age-based hostility, making repeated age-related comments and imposing heightened scrutiny on Plaintiff not imposed on younger employees. (FAC ¶¶ 49, 53–56.) Plaintiff reported the conduct to Human Resources and management multiple times, but the bank failed to intervene. (FAC ¶¶ 32–36.) Shortly after engaging in protected activity, Plaintiff was terminated. (FAC ¶¶ 58, 89–92.)

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Plaintiff's Discrimination Claims (Causes 2 and 4)

To allege a prima facie discrimination claim, a plaintiff must allege that "(1) [s]he was a member of a protected class, (2) [s]he was qualified for the position [s]he sought or was performing competently in the position [s]he held, (3) [s]he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory

motive.” (*Martin v. Bd. of Trustees of Cal. State U.* (2023) 97 Cal. App. 5th 149, 162.) As to this last element, “[a] plaintiff must establish a causal nexus between the adverse employment action and [her] protected characteristic.” (*Id.*)

First, Defendant Chase argues that Plaintiff fails to factually allege that she was performing her job satisfactorily. (Chase Demurrer at p.14: 4-9.) Plaintiff's opposition did not address Defendants' arguments on this issue. "Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived and pass it without consideration." (*People v. Stanley* (1995) 10 Cal.4th 764, 793.)

Second, Defendant Chase argues that Plaintiff fails to allege the causation element of her discrimination claims. The Court agrees. Plaintiff fails to allege the circumstances that suggest a discriminatory motive and as Defendants have pointed out, Plaintiff does not even allege who specifically made the termination decision. (Demurrer at p. 14: 17-19.)

Plaintiff's Harassment Claims (Causes 1 and 3)

To establish a prima facie case of harassment under FEHA, a plaintiff must show “(1) [s]he was a member of a protected class; (2) [s]he was subjected to unwelcome . . . harassment; (3) the harassment was based on [the plaintiff's membership in an enumerated class]; (4) the harassment unreasonably interfered with [her] work performance by creating an intimidating, hostile, or offensive work environment; and (5) [defendant] is liable for the harassment.” (*Martin v. Bd. of Trustees of California State Univ.* (2023) 97 Cal. App. 5th 149, 170; citing *Thompson v. City of Monrovia* (2010) 186 Cal. App. 4th 860, 876.)

Defendants argue that the FAC lacks factual allegations describing the nature of the conduct Plaintiff declares was harassment. Without such requisite facts, neither Defendant nor the Court can determine whether the unalleged conduct created a hostile work environment. (Demurrer at p. 16: 5-7.) The Court concurs. Without pleading any factual allegations describing the conduct of the alleged harassers, Plaintiff fails to allege any facts from which the severity of the conduct could be determined.

Defendants further argue that Plaintiff fails to allege any facts describing the pervasiveness of the purported harassment, as required. (*Lyle v. Warner Bros. Television Prods.* (2006) 38 Cal. 4th 264, 283 (“With respect to the pervasiveness of harassment, courts have held an employee generally cannot recover for harassment that is occasional, isolated, sporadic, or trivial; rather, the employee must show a concerted pattern of harassment of a repeated, routine, or generalized nature.”).) No factual allegations are made describing what was said, by whom, when or how often, the context in which the conduct occurred, or any other factual allegations that make the requisite showing of pervasiveness. Plaintiff summarily alleges that at some unidentified times, Defendant Pearson purportedly said unspecified things that she now characterizes in conclusory fashion as “hostile, intimidating, offensive, oppressive, or abusive.” [See FAC ¶ 35.] This does not establish pervasive harassment.

Plaintiff's Retaliation Claims (Causes 5 and 6)

“[I]n order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a ‘protected activity,’ (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action.” (*Yanowitz v. L'Oréal USA, Inc.* (2005) 36 Cal. 4th 1028, 1042.) These same elements apply to a whistleblower retaliation claim under Labor Code section 1102.5. Specifically, section 12940(h) makes

it an unlawful employment practice “[f]or any employer ... to discharge, expel, or otherwise discriminate against any person because the person has *opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part.*” (*Id.*)

Although Plaintiff does plead that she reported the alleged discrimination and harassment to HR, as explained above, Plaintiff does not allege sufficient factual allegations for her discrimination or harassment claims. As such, it is impossible for Plaintiff to successfully plead a retaliation cause of action for alleged discrimination and harassment that Plaintiff has not alleged sufficient facts for. Additionally, Plaintiff has not alleged enough facts about how she put Defendants on notice about the unlawful actions. The relevant question ... is not whether a formal accusation of discrimination is made but whether the employee's communications to the employer sufficiently convey the employee's reasonable concerns that the employer has acted or is acting in an unlawful discriminatory manner. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1047.)

Plaintiff's Failure to Prevent Discrimination, Harassment, or Retaliation Claim (Cause 7)

Plaintiff's purported failure to prevent claim fails because she cannot establish the underlying discrimination, harassment, or retaliation. California Government Code § 12940(k) provides that “[i]t shall be an unlawful employment practice, unless based upon a bona fide occupational qualification . . . [f]or an employer . . . to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring.” But there can be no violation of section 12940(k) absent a finding of actual discrimination, retaliation, or harassment. (*Trujillo v. N. Cnty. Transit Dist.* (1998) 63 Cal. App. 4th 280, 289 (“[T]here's no logic that says an employee who has not been discriminated against can sue an employer for not preventing discrimination that didn't happen, for not having a policy to prevent discrimination when no discrimination occurred . . .”).)

Plaintiff's Failure to Engage in the Interactive Process Claim (Cause 8)

Government Code section 12940(n) requires employers to “engage in a timely, good faith, interactive process with the employee . . . with a known physical or mental disability or known medical condition.” Put simply, the purpose of this statute is to ensure an employee's known disabilities are accommodated in the workplace. The statute does not, as Plaintiff contends, impose any obligation on employers regarding ordinary personnel management, including engaging “in a good-faith intervention process to address any issues with Plaintiff's performance that concerned her superiors . . .” (FAC ¶ 90.)

To properly allege a claim for failure to engage in the interactive process, Plaintiff must show that: “(1) [she] has a disability or medical condition that was known to the employer, (2) [she] requested that [her] employer make a reasonable accommodation for that disability so that [she] could perform [her] job duties, (3) the employer failed to participate in a timely, good faith interactive process with [her], and (4) the employer's failure to engage in a good faith interactive process was a substantial factor in causing [Plaintiff's] harm.” (*Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal. App. 4th 34, 61.)

Here, Plaintiff alleges that some unidentified person told her that “she could not take time off due to a lack of coverage.” (FAC ¶ 91.) Plaintiff fails to identify the reasonable accommodation that Plaintiff requested.

Plaintiff's Negligent Hiring, Training, and Supervision Claim for (Cause 9)

“Liability for negligent supervision and/or retention of an employee is one of direct liability for negligence, not vicarious liability.” (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal. App. 4th 790,

815.) To establish such a claim, a plaintiff must “plead that she suffered a certain harm, that this harm was substantially caused by the defendant’s employee, and that this harm would not have occurred if the defendant had properly vetted, supervised, or retained the employee.” (*Lopez v. Watchtower Bible & Tract Soc’y of New York, Inc.* (2016) 246 Cal. App. 4th 566, 591.) The tort’s intent is to punish defendants who knew, or should have known, of their employee’s propensity to commit the harm in question but failed to take reasonable steps to prevent the harm from occurring to the plaintiff. (*Id.*)

Plaintiff alleges that “PEARSON” and “others” purportedly “perpetrated aggressive and hostile discrimination and/or harassment . . . based on her medical condition, national origin, age, and whistleblower status.” (FAC ¶ 98.) Like the previous causes of action, Plaintiff offers no facts from which the Court could even infer that Defendant knew or should have known that “PEARSON” and unidentified “others” had a propensity to engage in the purported unlawful conduct. Plaintiff must factually describe what “PEARSON” and unidentified “others” did wrong, when it occurred, where it occurred, how she was harmed by this conduct, and how Defendant knew or should have known about this behavior before it occurred. Instead, Plaintiff offers only the naked conclusion that Defendant “condoned, encouraged, tolerated, sanctioned, ratified, approved of, and/or acquiesced in the discrimination and harassment.” (FAC ¶ 99.)

Plaintiff’s Wrongful Termination Claim (Cause 10)

In support of this cause of action, Plaintiff offers only the conclusion that Defendant’s “violations of Plaintiff’s rights, due to every member of protected classes, violated civil rights laws and Government Code and proximately caused Plaintiff’s damages . . .” [FAC ¶ 114.] These conclusions do not state a claim. (See *Hawkins v. TACA Int’l Airlines, S.A.* (2014) 223 Cal. App. 4th 466,478 (“When we review a ruling on a demurrer, we do not assume the truth of contentions or conclusions of fact or law[.]”.) Setting aside its conclusory nature, Plaintiff’s wrongful termination allegations also fail because they hinge on the viability of her FEHA causes of action. Accordingly, the allegations are derivative and must fail as Plaintiff has not stated a viable predicate claim

Individual Liability For Defendant Pearson Exists Under FEHA Harassment Claims

Government Code § 12940(j)(3) expressly permits individual liability for harassment. (See *Reno v. Baird* (1998) 18 Cal.4th 640, 645–46 (individual liability applies to harassment); *Jones v. The Lodge at Torrey Pines* (2008) 42 Cal.4th 1158, 1162 (same); *Raines v. U.S. Healthworks* (2023) 15 Cal.5th 268 (reaffirming individual liability for harassment claims). Harassment includes “conduct outside the scope of necessary job performance,” including “derogatory comments, insults, and epithets.” (*Roby v. McKesson* (2009) 47 Cal.4th 686.) Harassment can also apply to a single severe incident under FEHA.” (*Miller v. Dept. of Corrections* (2005) 36 Cal.4th 446, 462.)

Since individual liability only exists as to harassment-based claims, all non-harassment-based claims must fail. The Demurrer for causes of action two, four, eight, nine, and ten are sustained without leave to amend as to Defendant Pearson. The Demurrer for causes one, three, five, six, and seven are sustained with leave to amend as to Defendant Pearson.

Conclusion

For the reasons analyzed above, **Defendant Chase’s Demurrer is sustained in its entirety with leave to amend. The Demurrer for causes of action two, four, eight, nine, and ten are sustained without leave to amend as to Defendant Pearson. The Demurrer for causes one, three, five, six, and seven are sustained with leave to amend as to Defendant Pearson.**

6. 9:00 AM CASE NUMBER: C25-00878
CASE NAME: ANGELA YEUNG VS. JP MORGAN CHASE BANK NATIONAL ASSOCIATION
*HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT
FILED BY: JP MORGAN CHASE BANK NATIONAL ASSOCIATION
TENTATIVE RULING:

Before the Court is Defendants JPMorgan Chase Bank, N.A. and Stacey Pearson's Motions to Strike. The Motions to Strike relates to Plaintiff's FAC for ten causes of action for employment-related claims.

Since Plaintiff was granted leave to amend for the Demurrer, the Motion to Strike is overruled as moot.

7. 9:00 AM CASE NUMBER: C25-00878
CASE NAME: ANGELA YEUNG VS. JP MORGAN CHASE BANK NATIONAL ASSOCIATION
*HEARING ON MOTION IN RE: TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT
FILED BY: PEARSON, STACEY
TENTATIVE RULING:

See line 6.

8. 9:00 AM CASE NUMBER: C25-00878
CASE NAME: ANGELA YEUNG VS. JP MORGAN CHASE BANK NATIONAL ASSOCIATION
HEARING ON DEMURRER TO: TO PLAINTIFF'S FIRST AMENDED COMPLAINT
FILED BY: PEARSON, STACEY
TENTATIVE RULING:

See line 5.

9. 9:00 AM CASE NUMBER: C25-01177
CASE NAME: NEDA VALIASHRAFI VS. MANSOUR AZIZI
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT OF A TO Z PLUMBING
FILED BY: A TO Z PLUMBING, HEATING SERVICES INC
TENTATIVE RULING:

The unopposed motion to set aside default will be granted provided Defendant A to Z Plumbing files a proposed answer or other responsive pleading by December 17, 2026, at 3pm. The motion is continued to December 19, 2026, for confirmation of such filing.

10. 9:00 AM CASE NUMBER: N25-0756
CASE NAME: RAINS LUCIA STERN ST. PHALLE & SILVER, PC VS. DAN MIERZWA
HEARING ON DEMURRER TO: PETITIONER'S VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY: MIERZWA, DAN M.
TENTATIVE RULING:

Hearing continued by stipulation of the parties to February 6, 2026, at 9 a.m.

11. 9:00 AM CASE NUMBER: N25-1624

CASE NAME:

***HEARING ON MINOR'S COMPROMISE COMPROMISE OF DISPUTED CLAIM; PERSON WITH A DISABILITY**

FILED BY: CRISWELL, VICTORIA

TENTATIVE RULING:

The application for guardian ad litem is approved. The application for approval of compromise for a person with a disability is approved.

12. 9:00 AM CASE NUMBER: N25-2189

CASE NAME: PETITION OF:MATTHEW ROSALEZ

HEARING IN RE: PETITION FOR RELEASE OF PROPERTY FROM MECHANICS LIEN

FILED BY: ROSALEZ, MATTHEW

TENTATIVE RULING:

Granted. The court awards attorney fees and costs in the amount of \$2,445.00.

Discovery Law & Motion

13. 9:01 AM CASE NUMBER: C24-03083

CASE NAME: THOMAS MILLER VS. FORD MOTOR COMPANY

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES**

FILED BY: MILLER, THOMAS M.

TENTATIVE RULING:

Denied.

14. 9:01 AM CASE NUMBER: C24-03083

CASE NAME: THOMAS MILLER VS. FORD MOTOR COMPANY

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PROD OF DOCS, SET 1**

FILED BY: MILLER, THOMAS M.

TENTATIVE RULING:

Denied.

15. 9:01 AM CASE NUMBER: C23-01947

CASE NAME: ATHINA HUERTA VS. EAST BAY CARDIOVASCULAR AND THORACIC ASSOCIATES, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS RE: DEFENDANT EAST BAY CARDIOVASCULAR AND THORACIC ASSOCIATES, INC.**

FILED BY: HUERTA, ATHINA

TENTATIVE RULING:

Granted. Further responses shall be provided by January 15, 2026. Failure to provide further responses

could result in monetary sanctions and/or evidentiary sanctions as well as terminating sanctions. The court imposes sanctions in the amount of \$4500.

16. 9:01 AM CASE NUMBER: C23-01947

CASE NAME: ATHINA HUERTA VS. EAST BAY CARDIOVASCULAR AND THORACIC ASSOCIATES, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM
INTERROGATORIES - GENERAL, SET ONE RE: DEFENDANT EAST BAY CARDIOVASCULAR AND
THORACIC ASSOCIATES, INC.**

FILED BY: HUERTA, ATHINA

TENTATIVE RULING:

Granted. Further responses shall be provided by January 15, 2026. Failure to provide further responses could result in monetary sanctions and/or evidentiary sanctions as well as terminating sanctions. The court imposes sanctions in the amount of \$3375.